

Tentative Rulings for Department 503

Begin at the next page

(49)

Tentative Ruling

Re: ***Torosian v. BMW of North America, LLC***
Superior Court Case No. 24CECG04794

Hearing Date: May 28, 2026 (Dept. 503)

Motion: By Plaintiff Harout Torosian to Compel Attendance of Christopher Skibinski for Deposition and Production of Documents

Tentative Ruling:

To grant the motion and compel Christopher Skibinski to appear for deposition with document production. (Code Civ. Proc., § 2025.450, subd. (a).) The parties are directed to meet and confer on dates for the deposition, which shall occur within two weeks from service of the order by the clerk.

Explanation:

Plaintiff Harout Torosian ("Plaintiff") moves to compel the agent or employee of defendant BMW of North America ("Defendant"), Christopher Skibinski ("Skibinski"), to appear for a deposition with document production.

On October 28, 2025, Plaintiff electronically served Defendant a copy of *Notice of Deposition Christopher Skibinski and Demand to Produce Documents at Deposition*. (Rivero Decl., ¶ 15.) The deposition of Skibinski was scheduled for November 12, 2025. (*Ibid.*) On November 11, 2025, Defendant electronically served objections on Plaintiff. (*Id.*, ¶ 16; Wasson Decl., ¶ 13.) Skibinski did not appear for the November 12, 2025 deposition. (Riveo Decl., Exh. 9.) Plaintiff had a meet and confer via telephone and follow up email correspondence with Defendant about Defendant's opposition to the deposition of Skibinski. (*Id.*, ¶ 21 and Exh. 13.)

Proper service of a notice of deposition compels any deponent who is a party to the action to attend, to testify, and to produce documents if requested. (Code Civ. Proc., § 2025.280, subd. (a).) Where a party deponent fails to appear at a properly noticed deposition, and no timely, valid objection under section 2025.410 has been served, the party giving the notice may move for an order compelling the deponent's attendance and testimony. (*Id.*, § 2025.450, subd. (a).) Unless a party serves a written objection at least three calendar days prior to the scheduled date of a deposition, the party waives any error or irregularity with the deposition notice. (*Id.*, § 2025.410, subd. (a).) "Any document that is served electronically between 12:00 a.m. and 11:59:59 p.m. on a court day shall be deemed served on that court day." (*Id.*, § 1010.6, subd. (a)(4).)

Defendant failed to timely serve objections to the notice of deposition. Plaintiff has met the requirements of Code of Civil Procedure section 2025.450. Accordingly, the motion to compel the deposition of Skibinski is granted. Skibinski is directed to appear for deposition, and respond to the document production.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: JS on 5/27/2026.
(Judge's initials) (Date)